

POWER PURCHASE AGREEMENT

Between



And

SYNERGIA LTD

SYNERGIA LTD

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THIS AGREEMENT is made on [redacted]st of [redacted], 2026 (the "Agreement")

BETWEEN:

- (1) [redacted], a company incorporated under the laws of the Republic of Cyprus with registered number HE [redacted] whose registered office is at [redacted], Cyprus (the "**Producer**"); and
- (2) **SYNERGIA Ltd**, a company incorporated under the laws of the Republic of Cyprus with registered number HE386933, whose registered office is at Nikodimou Mylona 28, 3095 Limassol, Cyprus (the "**Supplier**"),

each a "**Party**" and collectively the "**Parties**".

WHEREAS:

- (A) The Producer wishes to sell and the Supplier wishes to buy and/or trade as an Electricity / Energy Aggregator the electric energy produced by the Producer at the Photovoltaic Project/s in Table A below, (the "**Facility**"), based on the terms of this Agreement.

TABLE A					
#	Location	CERA	MW	Sheet/Plan	Plot

IT IS AGREED as follows:

1. DEFINITIONS AND INTERPRETATION

- 1.1 Terms defined in Applicable Laws shall, unless the context otherwise requires, have the same meaning when used in this Agreement.
- 1.2 In this Agreement, the following terms and expressions shall, unless the context otherwise requires, have the following meanings:

"**Activation Date**" or "**Commercial Operation Date**" has the meaning given in Clause 3;

"**Additional Term**" has the meaning given in Clause 3.2;

"**Affected Party**" has the meaning given in Clause 9.1;

"**Agreed Production**" has the meaning given in Clause 5.2;

"**Applicable Law**" means (1) the Electricity Market Regulation Law of 2021, L. 130(I)/2021, (2) the Transitional Regulation of the Electricity Market Rules, (3) the

Distribution and Transmission Rules, (4) the Electricity Market Rules, (5) the Promotion and Encouragement of Renewable Energy Sources Utilization Law of 2022, L. 107(I)/2022, and any other relevant laws and regulations enacted in Cyprus from time to time;

“Associated Certificates” means all associated, financial and non-financial benefits, that relate to the electricity generated by the Facility, including without limitation any renewable energy guarantee of origin certificates (GoO's) issued under Applicable Laws;

“Business Day” means a day (other than Saturday, Sunday, or a public holiday) on which banks are open for general, non-automated business in Nicosia, Cyprus;

“CERA” has the meaning given in Recital (A);

“Clearing Party” or **“CP”** has the meaning given in Recital (A);

“Day Ahead Market” or **“DA”** has the meaning given to such term in the Competitive Electricity Market of Cyprus in the Electricity Market Law;

“DSO” has the meaning given in Recital (A);

“EAC” means the Electricity Authority of Cyprus;

“Electrical Output” means the electricity generated by the Facility;

“Electricity Price” means the price of electricity per kWh payable by the Supplier to the Producer for the Electrical Output, as calculated pursuant to Clause 6;

“General Data Protection Regulation” means Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation);

“Grid” means the Transmission System and the Distribution System;

“Facility” has the meaning given in Recital (B);

“Force Majeure Event” means any event or circumstance which is beyond the reasonable control of either Party and which results in or causes the failure of that Party to perform any of its obligations under this Agreement, including, without limitation, any act of God, strike, lockout or other industrial disturbance (but excluding any such strike, lockout or other industrial disturbance caused or organized by the employees of the Party seeking to rely on Force Majeure), act of the public enemy, war, threat of war, terrorist act, blockade, revolution, riot, insurrection, civil commotion, public demonstration, sabotage, act of vandalism, lightning, fire, storm, flood, earthquake, pandemic, accumulation of snow or ice, lack of water arising from weather or environmental problems, explosion and governmental restraint, other legislation and directive to the extent that such failure or deficiency or the consequences thereof could not have been prevented by the exercise of prudent practice by either Party, provided that (a) pandemics and (b)

lack of funds shall not be interpreted as events or circumstances beyond that Party's reasonable control;

“Forward Market” or “FM” has the meaning given to such term in the Competitive Electricity Market of Cyprus in the Electricity Market Law;

“Insolvency Event” means, in relation to a Party, that such Party:

- (a) is dissolved (other than pursuant to a solvent consolidation, amalgamation or merger);
- (b) makes a general assignment, voluntary arrangement or compromise or composition with or for the benefit of its creditors;
- (c) has a moratorium declared in respect of any of its indebtedness;
- (d) has an order issued against it for its winding-up, examinership, official management or liquidation or any relief under any bankruptcy or insolvency law;
- (e) has a resolution passed for its winding-up, examinership, official management or liquidation (other than pursuant to a consolidation, amalgamation or merger which involves only entities of the group to which that Party belongs);
- (f) becomes subject to the appointment of an administrator, examiner, liquidator, conservator, receiver, manager, trustee, custodian or other similar official for it or for all or substantially all of its assets;
- (g) has a distress, execution, attachment, sequestration or other legal process levied or enforced on or against all or substantially all of its assets and such process is not dismissed, discharged, stayed or restrained, in each case within 60 calendar days; or
- (h) causes or is subject to any event with respect to it which, under the applicable laws of any jurisdiction, has an analogous effect to any of the events set out in paragraphs (a) to (g) above.

“Invoice” has the meaning given in Clause 6.2;

“Market Clearing Price” is as defined in CERA Regulatory Decision 01/2015 (Regulatory Administrative Act 164/2015) and as amended from time to time;

“Market” or “Competitive Electricity Market” or “Liberalised Electricity Market” means the competitive electricity market in Cyprus which shall operate in accordance with the provisions of the Electricity Market Rules in force from time to time;

“Market Operator” or “MO” has the meaning given in Recital (A);

“Market Schedule” has the meaning given in the electricity market regulations and includes all successful energy nominations in the Forward Market, the Day-Ahead Market etc.

“Nominations of Energy” has the meaning given in Clause 2.2

“Purchase Price Rate” has the meaning given in Clause 6;

“Scheduled Outage” means a scheduled full or partial interruption of the generating capability of the Facility for maintenance purposes;

“Settlement Statement” or **“Imbalance Statement”** or **“Clearance Statement”** means the notice of approval for the period the energy was traded, issued by the TSO, as it is described in the Electricity Regulations;

“Term” means the term of this Agreement, as set out in Clause 3;

“TSO” has the meaning given in Recital (A); and

1.3 In this Agreement, unless the context requires otherwise:

- (a) references to clauses and recitals are, save unless explicitly stated otherwise, references respectively to Clauses of, and Recitals to, this Agreement;
- (b) the Recitals form an integral part of this Agreement and shall have the same force and effect as if set out in full in the body of this Agreement;
- (c) Clause headings shall not affect the interpretation of this Agreement;
- (d) a person includes a natural person, corporate or unincorporated body (whether or not having separate legal personality);
- (e) a reference to a company shall include any company, corporation or other body corporate, wherever and however incorporated or established;
- (f) words in the singular shall include the plural and words in the plural shall include the singular;
- (g) a reference to one gender shall include a reference to the other genders;
- (h) this Agreement shall be binding on and endure to the benefit of the Parties and their respective successors, personal representatives and permitted assigns, and references to a Party shall include that Party's successors, personal representatives and permitted assigns;
- (i) a reference to a statute or statutory provision is a reference to it as amended, extended or re-enacted from time to time. A reference to a statute or statutory provision shall include all subordinate legislation made from time to time under that statute or statutory provision;
- (j) references to this Agreement or any other agreement or instrument are references to this Agreement or that other agreement or instrument as amended, novated, supplemented, extended or restated;
- (k) a reference to writing or written includes fax and email;
- (l) any obligation on a Party not to do something includes an obligation not to allow that thing to be done; and
- (m) any words following the terms including, include, in particular, for example or any similar expression shall be interpreted as illustrative and shall not limit the sense of the words preceding those terms.

2. SCOPE

- 2.1 The Producer agrees to sell and the Supplier agrees to purchase and trade the Electrical Output of the Facility in accordance with the provisions of this Agreement.
- 2.2 The Producer acknowledges and agrees to appoint the Supplier to be the dedicated aggregator of energy (electricity) and representative of its electricity production unit/s for the purpose of issuing declarations / nominations of electrical energy to the MO, the TSO, the DSO and/or the CP, through Bilateral Contracts in the Forward Electricity Market (OTC) and/or the Day-Ahead Market and/or Intra-day Market and/or the Electricity Market.
- 2.3 The Producer acknowledges and agrees that the Supplier shall have the exclusive right to manage the injection of electricity into the grid (with or without an incorporated electricity storage system), including both upward and downward energy dispatch orders (if applicable), at the Supplier's sole and reasonable discretion.
- 2.4 The Producer agrees that the electricity traded by the Supplier, along with any associated benefits and/or derived certificates to the produced electricity, are to be made use solely by the Supplier and as the Supplier chooses.
- 2.5 The Producer shall appoint the Supplier and provide him with all required authorizations to generate certificates related to the produced electricity and to represent the Facility in the operation of the Competitive Electricity Market of Cyprus and to carry out any actions considered necessary in that respect by the MO, the TSO and/or the DSO. Any authorization granted or appointment made by the Producer pursuant to this Clause 2.5 shall, to the extent permitted by Applicable Law, be automatically terminated and of no further force and effect upon termination of this Agreement for any reason.
- 2.6 The Supplier shall be responsible for:
 - 2.6.1 entering into any agreements and delivering any guarantees which may be required by Applicable Laws in its capacity as a participant supplier and/or energy aggregator in the electricity market relating to the trading of the Electrical Output of the Facility in the electricity market;
 - 2.6.2 the timely, accurate and correct forecast and nomination of the forecasted Electrical Output of the Facility as required by the MO, the TSO, the CP and/or the DSO.
 - 2.6.3 the representation and management of the Electrical Output of the Facility in the electricity market;in each case without recourse to the Producer.
- 2.7 The Producer shall be responsible for:

- 2.7.1 entering into any agreements and providing any cash collateral as guarantee to the bank account designated by the Supplier in writing, as may be required by Applicable Laws, the CP, the Authorities operating the Electricity Market, or the Supplier, in connection with the Producer's participation under the Supplier's Energy Aggregator identity in its capacity as a participant producer (generator) of electricity in the Forward Electricity Market, Day-Ahead Market, Intra-day Market, or in any other capacity as a participant under the Supplier's Energy Aggregator identity or within the Electricity Market; and
- 2.7.2 taking all actions and signing any required documents as may be requested by the competent authorities in order to duly appoint and authorize the Supplier to represent and manage the Electrical Output (and/or the Facility if so required) in the electricity market.
- 2.7.3 pay any fees as specified in the Electricity Market Rules regarding the Facility's participation and operation

3. TERM

- 3.1 This Agreement shall come into force on the date of signing and, subject to the conditions described in Clause 3.2, shall remain in force for a period of thirty six (36) months, following the Activation Date (the "Term"), unless it is amended or terminated earlier in accordance with the provisions of this Agreement.
- 3.2 The Term may be extended for an additional three (3) separate periods of thirty six (36) months each (each an "Additional Term") by agreement between the Parties in writing at least 2 (two) months prior to the expiry of the Term or each Additional Term, as applicable.
- 3.3 The Activation Date shall be the date on which the MO or TSO registers the Facility as part of the Supplier's Aggregator portfolio.

4. METERING

- 4.1 All metering shall be carried out by the DSO according to the Distribution and Transmission Rules in force, registered at the export meter installed by the DSO and injected into the electrical grid. Such metering will be used for the calculation of the Electrical Output.
- 4.2 In the event that any error in the metering system of the Facility is identified, which exceeds any limits set out in the Distribution and Transmission Rules in force, the billing and payment of purchased electricity shall be adjusted retrospectively.

5. MAINTENANCE, REPAIR, PRODUCTIVITY AND FORECAST

5.1 The Producer shall:

- 5.1.1 agree in advance with the Supplier all Scheduled Outage, each Party acting reasonably in that respect;
- 5.1.2 inform the Supplier of any significant faults or need for major repairs without undue delay and within 3 hours of the reported fault; and
- 5.1.3 have an Operation and Maintenance (O&M) contract in place with a reputable O&M service provider and shall inform the Supplier of any scheduled maintenance activities and/or scheduled outage that might affect the Supplier's activities at least thirty (30) days in advance.

5.2 Without prejudice to clause 5.1, the Producer shall ensure that the productivity value of the Facility will follow and be defined by the values calculated by the production simulation software "PVSyst" (**Appendix A**) at P50 (the "Agreed Production").

5.3 The Producer shall notify the Supplier of any material deviation of the electricity produced, including any anticipated deviation, as soon as the Producer becomes aware of such deviation/anticipated deviation. Material deviation shall mean a deviation in excess of 10% from the Agreed Production.

5.4 The Producer shall install, operate, and maintain surveillance, monitoring, and telecommunication systems necessary for the remote monitoring and control (SCADA) of the Facility's electricity production. The Producer shall grant the Supplier full access and control to such systems via a VPN connection to the Supplier's server, in accordance with the Supplier's instructions and technical requirements. The Producer shall ensure continuous and uninterrupted VPN connectivity to the Facility's SCADA system at all times.

5.5 The Producer shall appoint a suitably qualified person to act as the Control Officer, as defined in and in accordance with the Distribution and Transmission Rules. Such person shall be the point of contact of the Supplier and the Producer, as well as the point of contact with the TSO and/or the DSO in respect of operational matters of the Facility.

5.6 The Producer remains fully liable for any act or omission of any contractor engaged under any agreement for the operation and maintenance of the Facility, the Control Officer and/or any other person authorized by the Producer to work with or on the equipment of the Facility. This term however, is without prejudice to the rights of the Producer against any other third person and/or legal entity.

6. PAYMENT AND INVOICING

- 6.1 The Supplier shall pay to the Producer the Electricity Price, in accordance with the billing and payment specifications provided in this clause.
- 6.1.1 The amount due for payment for the electricity produced and traded under this Agreement shall be calculated by the Supplier on a monthly basis in accordance with the Electrical Output and shall comprise the result of the monthly Electrical Output in kWh, multiplied by the monthly corresponding **"Purchase Price Rate"**.
- 6.1.1.1 For the Electrical Output kWh's from the PV Facility, shall be compensated at the **"Purchase Price Rate"**, equal to **eighty percent (80%)** of the corresponding average Market Clearing Price of the Day Ahead Market (DA). (the daily average of the 48 periods of 30 minutes will be calculated as follows: adding up all 48 bid results published of the day in euros and then divide them by 48).
- 6.1.1.2 For the Electrical Output kWh's from the BESS system, will be credited at the **"Purchase Price Rate"** which shall mean and be related to the half-hourly Market Clearing Price and related and linked to the half-hourly System Marginal Price at real time, which is set at **eighty percent (80%)** of the corresponding Day Ahead Market Clearing Price. The Day Ahead Market Clearing Price means the clearing price for a half-hourly period used for the settlement of bids in the day ahead electricity market (as published by the market, MO, TSO).
- 6.2 For any energy deficit and reduced productivity value of the Facility from the Agreed Production due to a technical malfunction and/or improper operation and maintenance of the Facility, the energy deficit which will be debited by the MO, TSO and/or CP as imbalance will be back-to-back debited at a rate of 110% to the Producer by the Supplier including any penalties applied.
- 6.3 For any Non-Compliance Charge for failing to follow Dispatch Instructions and/or any Instructed Imbalance Charge imposed by the market, TSO, MO, CP, shall be debited to the Producer.
- 6.4 The Supplier shall issue and send to the Producer an invoice (the **"Invoice"**), to correctly reflect the Final Written Settlement Statement (self-invoicing procedure), as soon as possible and in any event within seven (7) Business Days following the receipt of the Final Settlement Statement. The Invoice shall reflect the amount payable by the Supplier to the Producer and shall also incorporate the amount payable or receivable by the Supplier in relation to the TSO / MO / CP clearance adjustments.
- 6.5 The Supplier shall issue and send to the Producer an invoice for the imported electrical energy of the facility.

- 6.6 The Supplier shall pay to the Producer the amount indicated on the Invoice (plus any applicable VAT) within fifty (50) business days of the end of each monthly period.
- 6.7 Payments shall be made free and clear of any deduction or withholding, in Euros and in immediately available funds to the Producer's designated bank account, details of which are set out in "**Appendix B**", or to any other bank account designated from time to time by the Producer by notice in writing to the Supplier.
- 6.8 In the event that no clearance statements are received from the TSO / MO / CP within the time period preceding the payment date, the Supplier shall issue an estimated invoice relating to eighty per cent (80%) of the Electrical Output and pay the Producer accordingly. A second invoice will be issued as soon as TSO / MO / CP clearance statements are received and will be settled by the Parties accordingly.
- 6.9 In case the Supplier has paid the Producer more than it should have paid for electricity purchased, the Producer shall return the difference within fifteen (15) calendar days of having received notice by the Supplier. In case the Supplier has paid less, the Supplier shall pay the additional amount to the Producer within fifteen (15) calendar days of the Parties having agreed that such amount is due.

7. INSURANCE

- 7.1 At all times during the Term and (if applicable) any Additional Term, the Producer shall obtain and maintain at its own cost all risks including physical loss or damage insurance covering all facilities, machinery and equipment used by the Producer in performance of the work under this Agreement. Such insurance shall include the types of coverage usually maintained in respect of facilities and operations of this kind.
- 7.2 The Producer shall, on request, cause its insurers or agents to provide the Supplier with certificates of insurance evidencing the insurance policies and endorsements required by this Clause.

8. TECHNICAL MATTERS AND OPERATION

- 8.1 Any technical or other related matter, which is not explicitly provided for in this Agreement, shall be regulated by Applicable Laws.
- 8.2 Each Party shall co-operate with and assist each other in good faith and shall provide the competent authorities with any relevant information as may be requested from time to time.

9. FORCE MAJEURE

- 9.1 If a Party is or will be prevented from performing any of its obligations under this Agreement by a Force Majeure Event (the "**Affected Party**"), then it shall promptly give notice to the other Party giving the details of the nature of the Force Majeure Event, the expected impact of the Force Majeure Event on its ability to carry out its

obligations under this Agreement and the anticipated duration of the Force Majeure Event. The Affected Party shall, having given notice (but such notice to apply retrospectively from the time of commencement of the Force Majeure Event), be excused from the performance of its obligations impacted by the Force Majeure Event for so long as such Force Majeure Event prevents it from performing them.

- 9.2 Manufacturer-related delays or non-compliance shall be considered a Force Majeure event if they result in extended downtime or operational interruptions beyond the Producer's control
- 9.3 The Affected Party shall at all times use reasonable endeavors to minimize any delay in the performance of its obligations under this Agreement as a result of a Force Majeure Event and to mitigate the effects of the Force Majeure Event. The Affected Party shall give notice to the other Party when it ceases to be affected by the Force Majeure Event.
- 9.4 The Affected Party shall continue to perform all of its obligations under this Agreement which are not affected by the Force Majeure Event.
- 9.5 The Parties shall bear their own costs arising as a result of a Force Majeure Event.
- 9.6 This Agreement shall be automatically extended by the period of the Force Majeure Event provided that all relevant licenses, consents and permits relating to the Supplier, the Producer and the Facility remain in force.

10. REPRESENTATIONS AND WARRANTIES OF THE PRODUCER

- 10.1 The Producer represents and warrants to the Supplier that each warranty set out in this Clause 10 is true, accurate and not misleading in any material respect on the date of this Agreement:
 - 10.1.1 it is a legal person / entity duly registered and validly existing in accordance with the laws of the Republic of Cyprus;
 - 10.1.2 this Agreement constitutes legal, valid and binding obligations of the Producer, enforceable in accordance with its terms;
 - 10.1.3 it has all requisite capacity, power and authority to enter into this Agreement, to perform its obligations hereunder and to consummate the operations contemplated hereby;
 - 10.1.4 it is not bound by any agreement, order or judgment that would render any of its obligations under this Agreement unenforceable, invalid or illegal;
 - 10.1.5 there is no legal action or suit pending or, to the Producer's knowledge, threatened against the Producer that would materially affect the performance of its obligations under this Agreement;
 - 10.1.6 the signatories executing this Agreement on its behalf are duly authorised to execute and deliver this Agreement;

- 10.1.7 the Producer has entered into an insurance contract with a reputable insurance company, for any direct and/or consequential loss, a copy of which insurance contract shall be provided to the Supplier;
- 10.1.8 it currently holds, and will maintain in effect for the duration of this Agreement, all permits, consents and licenses required by Applicable Law for the performance of its obligations under this Agreement; and
- 10.1.9 the Producer maintains at all times a properly adjusted and calibrated meteorological station at the Facility; and
- 10.1.10 no Insolvency Event has occurred with respect to it.

11. REPRESENTATIONS AND WARRANTIES OF THE SUPPLIER

- 11.1 The Supplier represents and warrants to the Producer that each warranty set out in this Clause 11 is true, accurate and not misleading in any material respect on the date of this Agreement:
 - 11.1.1 it is a legal person / entity duly registered and validly existing in accordance with the laws of the Republic of Cyprus;
 - 11.1.2 this Agreement constitutes legal, valid and binding obligations of the Supplier, enforceable in accordance with its terms;
 - 11.1.3 it has all requisite capacity, power and authority to enter into this Agreement, to perform its obligations hereunder and to consummate the operations contemplated hereby;
 - 11.1.4 it is not bound by any agreement, order or judgment that would render any of its obligations under this Agreement unenforceable, invalid or illegal;
 - 11.1.5 there is no legal action or suit pending or, to the Supplier's knowledge, threatened against the Supplier that would materially affect the performance of its obligations under this Agreement;
 - 11.1.6 the signatories executing this Agreement on its behalf are duly authorised to execute and deliver this Agreement;
 - 11.1.7 it currently holds, and will maintain in effect for the duration of this Agreement, all permits, consents and licenses required by Applicable Law for the performance of its obligations under this Agreement; and
 - 11.1.8 no Insolvency Event has occurred with respect to it.

12. BREACH OF THE AGREEMENT

- 12.1 In the event that either Party is in breach of any term and or condition of this Agreement which causes damage to the other, innocent party, the innocent party

shall be entitled to give 10 days' written notice to the defaulting party requiring the defaulting party to remedy the breach. In case the breach is not remedied to the reasonable satisfaction of the innocent party within 30 calendar days the innocent party will have the right to proceed as follows:

- 12.1.1 In the event that the breach pertains to the laws under the jurisdiction of CERA, the Parties shall refer the matter to 'Dispute Resolution' as provided for in Clause 16 of this Agreement.
- 12.1.2 In the event of breach of this Agreement save for those that pertain to the jurisdiction of CERA the Parties shall agree to refer the matter to 'Arbitration' as provided for in Clause 16 of this Agreement.
- 12.1.3 In the event that the defaulting party does not rectify the breach and in the event of breach of a material/essential term of this Agreement including without limitation a failure to make a monetary payment when due, the innocent party shall afford to the defaulting party a further 15 calendar days to rectify the breach and, in case the breach is not remedied to the reasonable satisfaction of the innocent party, the innocent party, shall have the right to terminate this Agreement immediately and/or to pursue any other remedies in accordance with the applicable laws.
- 12.2 Without prejudice to the rights of the Parties under applicable law, in the event of termination of this Agreement, either Party shall pay to the other Party the electricity invoice, any applicable interest on the electricity invoice and any other amount(s) due in accordance with this Agreement, and to provide an adequate remedy for any other damage that the Party may have incurred as a result of the other Party's breach of the Agreement.
- 12.3 The present Agreement shall terminate automatically as of the date on which a final and irrevocable revocation or non-renewal of a License happens which constitutes the Production Unit in a non-operating condition in regards to the electricity market, in accordance with the relevant provisions of the applicable legislation. Such event will give rise to termination with immediate effect of the present Agreement by the Supplier and the Supplier shall be eligible to seek reimbursement as liquidated damages for the duration of such event and up to a period of 6 months, which was covered by the present Agreement in addition to any damages and claims for costs and expenses that may have been incurred by the Supplier due to the occurrence of such event and which the Supplier has the right to claim and/or seek through further action.
- 12.4 The present Agreement shall terminate automatically if the Supplier's License is revoked or suspended or becomes inactive for whatever reason. Such event will give rise to termination with immediate effect of the present Agreement by the Producer and the Producer shall be eligible to seek reimbursement as liquidated damages for the duration of such event and up to a period of 6 months, which was covered by the present Agreement in addition to any damages and claims for costs and expenses that may have been incurred by the Producer due to the occurrence of such event and which the Producer has the right to claim and/or seek through further actions.

13. TERMINATION

- 13.1 Either Party has the right to terminate this Agreement in accordance with Clause 9 or 12.
- 13.2 Notwithstanding Clause 9 in the event of a force majeure that lasts longer than thirty (30) days, the Party not experiencing the force majeure event may terminate this agreement upon written notice to the other Party.
- 13.3 Termination of this Agreement by either Party shall not affect any of the rights, remedies or obligations of either Party that have accrued prior to such termination.
- 13.4 In the event that during the Term or any Additional Term, the commercial reasonableness of this Agreement is materially adversely affected for either Party, the Parties shall review the market conditions and negotiate in good faith with the aim of agreeing amendments to this Agreement to reflect the original intention of the Parties.

14. LIABILITY

- 14.1 Neither Party excludes its liability to the other Party for (i) death or personal injury caused by its negligence; (ii) fraud or fraudulent misrepresentation; (iii) any matter which it would be illegal for it to exclude and limit or to attempt to exclude and limit its liability; or (iv) any representation made by such Party to the other Party.

15. CONFIDENTIALITY AND DATA PROTECTION

- 15.1 Subject to Clause 15.2 below, the Parties shall not reveal to any third party any confidential information exchanged between them, if and to the extent that it is stated or known by them to be confidential, including but not limited to any information on the Electricity Price and other fees agreed pursuant to this Agreement, and shall use such information only for the purposes of this Agreement.
- 15.2 Any Party may disclose information which would otherwise be confidential if and to the extent that (a) it is required to do so by law or a regulatory or governmental body to which it is subject wherever situated; (b) it considers it necessary to disclose the information to any investor(s) or prospective investor(s) in that Party or any of that Party's group companies, provided that it does so on a confidential basis; (c) it considers it necessary to disclose the information for the purpose of exercising its rights or performing its obligations under this Agreement or to its professional advisers, auditors and bankers provided that it does so on a confidential basis, (d) the information has come into the public domain through no fault of that Party; or (e) each Party to whom the information relates has given its consent to the disclosure in writing.
- 15.3 In the event that either Party becomes aware of unauthorized disclosure or use of any confidential information or material, contrary to this Clause, such Party shall

immediately inform the other Party and reasonably assist the other Party in order to remedy the breach of this Clause.

- 15.4 The Parties acknowledge that, from time to time, they may disclose to the other Party personal data for the purpose of implementing this Agreement. Each Party shall comply with all obligations imposed under the General Data Protection Regulation and any other applicable data protection legislation in respect of the processing of such data, and shall assist the other Party to comply with all applicable requirements of the data protection legislation.

16. GOVERNING LAW AND DISPUTE RESOLUTION

- 16.1 This Agreement and any dispute or claim arising out of or in connection with it shall be governed by and construed in accordance with the laws of the Republic of Cyprus.
- 16.2 The Parties agree that, save as provided for by Applicable Law, any dispute which may arise out of or in connection with this Agreement over which CERA has jurisdiction, may be resolved by the Parties by amicable settlement. If such dispute cannot be resolved in an amicable manner, it shall be referred to CERA, pursuant to the powers granted to it by Applicable Law, as well as any other amending or relevant laws and regulations from time to time.
- 16.3 Any dispute or claim arising out of or in connection with this Agreement, which is not subject to the jurisdiction of CERA, shall be referred to The District Court of Limassol in accordance with applicable law.

17. ASSIGNMENT

- 17.1 Subject to Clause 17.2 below, no Party may assign, transfer, charge, hold on trust for any person or otherwise deal in any other manner with any of its rights under this Agreement nor any benefit, interest, right or cause of action arising under this Agreement without the prior written consent of the other Party (such consent not to be unreasonably withheld or delayed).
- 17.2 Notwithstanding the aforementioned, the Producer may charge or assign any of its rights, benefits or receivables under the Agreement to a bank or other financial institution which provides funding for the construction or operation of the Facility (the "Lender"). On the enforcement of any security provided to such bank or other financial institution, the Producer, any receiver of the Producer or any person having the benefit of such security or its nominee may transfer any or all of the obligations and/or assign any or all of the rights, benefits or receivables of the Producer under this Agreement to any person.
- 17.3 The Supplier, at the Producer's request, enter into and deliver a direct agreement between the Supplier, the Producer and the Lender, which, among others, gives the Lender some rights in case of a default of the Producer under this Agreement, in the form requested by the Lender.

18. MISCELLANEOUS

18.1 Any notice to be given by either Party under this Agreement shall be sufficiently served if sent by hand to the other Party's registered office address or sent by electronic mail to the addresses set out below:

18.1.1 Supplier:

Address: Nikodimou Mylona 28, 3095 Limassol, Cyprus

Email: [-]

Fax: +357 25 248 631

Tel: +357 25 248 630

18.1.2 Producer:

Address: [-]

Email: [-]

Fax: [-]

Tel: [-]

18.2 Any notice shall be deemed to have been received (i) if sent by hand, on delivery; and (ii) if sent by email, when sent, provided that no automated error message is received by the sender. Any notice deemed to be received on a day that is not a Business Day, or outside the hours of 09:00-16:00 on a Business Day, shall be deemed to be received at 09:00 on the immediately following Business Day.

18.3 No variation to any provision of this Agreement shall be valid unless it is in writing and signed by each Party.

18.4 This Agreement constitutes the entire agreement between the Parties in relation to its subject matter. It replaces and extinguishes all prior agreements, draft agreements, arrangements, collateral warranties, collateral contracts, statements, assurances, representations and undertakings of any nature made by or on behalf of the Parties, whether oral or written, in relation to that subject matter.

18.5 If any change in relevant legislation or regulations shall occur or be proposed which renders it impossible or unlawful to give effect to this Agreement, the Parties shall negotiate in good faith (both acting reasonably) such amendments to this Agreement as are necessary to achieve (insofar as possible) the same overall balance of rights and obligations as applied to the parties under this Agreement before such change in law.

18.6 If any provision or part-provision of this Agreement is or becomes invalid, illegal or unenforceable, it shall be deemed deleted, but that shall not affect the validity and enforceability of the rest of this Agreement. If any provision or part-provision of this Agreement is deemed deleted pursuant to this Clause 18.6, the Parties shall negotiate in good faith to agree a replacement provision that, to the greatest extent possible, achieves the intended commercial result of the original provision.

18.7 This Agreement may be executed in any number of counterparts and by the Parties to it on separate counterparts, each of which shall be an original but all of which together shall constitute one and the same instrument. The exchange and delivery of such counterparts may occur via the electronic transmission of copies via pdf or facsimile, but no counterpart shall be effective until each Party has provided to the other Party at least one executed counterpart.

18.8 A waiver of any right or remedy under this Agreement or by law is only effective if given in writing and shall not be deemed a waiver of any subsequent right or remedy. A failure or delay by a Party to exercise any right or remedy provided under this Agreement or by law shall not constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict any further exercise of that or any other right or remedy. No single or partial exercise of any right or remedy provided under this Agreement or by law shall prevent or restrict the further exercise of that or any other right or remedy.

Signed by the Parties on the date first mentioned in this Agreement.

THE SUPPLIER

SYNERGIA LTD

THE PRODUCER

[-]

Name:

Director

Name:

Director

In the presence of the following two witnesses:

Signature

Signature

Full Name

Full Name

ID Number

ID Number